

UNITED STATES DISTRICT COURT  
EASTERN DISTRICT OF NEW YORK

**FILED**  
IN CLERK'S OFFICE  
U.S. DISTRICT COURT E.D.N.Y.  
★ JAN 15 2010 ★

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SHELDON LEWIS,

Index No.

BROOKLYN OFFICE

Plaintiff,

COMPLAINT

-against-

**CV 10 - 0191**

THE CITY OF NEW YORK, POLICE OFFICER  
JAMES RIVERA, Shield #12095, and  
POLICE OFFICER "JOHN DOE",

JURY TRIAL DEMANDED

**TRAGER, J.**

**GOLD, M.C.**

Defendants.  
-----X

Plaintiff SHELDON LEWIS, by his attorneys, OFODILE & ASSOCIATES, P.C.,  
complaining of the Defendants – the City of New York (hereinafter also referred to as "City"),  
James Rivera, Shield #12095, and Police Officer "John Doe", upon information and belief,  
alleges as follows:

**JURISDICTION AND VENUE**

1. This is an action at law to redress arrest, imprisonment, and prosecution without probable cause, in violation of the Plaintiff's rights under the Fourth, Fifth, and Fourteenth Amendments to the U.S. Constitution and 42 U.S.C. § 1983. This is also an action to redress the pain and suffering and psychological injuries sustained by Plaintiff as a result of the intentional, malicious, careless, and negligent acts of the City of New York, and some of its Police Officers.

2. Jurisdiction is specifically conferred on the United States District Court by 28 U.S.C. § 1331, this being an action arising under the Constitution and Federal Law, and by 28 U.S.C. § 1343(a)(3), this being an action authorized by law to redress the deprivation, under

color of statute, ordinance, regulation, custom or usage, of rights, privileges, and immunities secured to Plaintiff by the Fourth, Fifth, and Fourteenth Amendments to the Constitution, and by 42 U.S.C. § 1983.

3. Venue is proper in the Eastern District of New York because the events complained of occurred in the County of Kings, which is within the Eastern District of New York.

### **PARTIES**

4. During all times relevant and material to this Complaint, Plaintiff Sheldon Lewis was (and is) a citizen of the United States residing in Kings County, New York, within the jurisdiction of this Court.

5. During all times relevant and material to this case, Defendant City of New York was and upon information and belief still is a municipal corporation incorporated under the laws of the State of New York.

6. During all times relevant and material to this case, Defendants James Rivera, Shield #12095, and Police Officer "John Doe", were employed by Defendant City of New York through its Police Department and worked with the Brooklyn North Narcotics Squad.

7. The actions of Defendant Police Officers complained of herein were done as part of the custom, practice, usage, regulation, and/or direction of Defendant City of New York.

### **FACTS COMMON TO ALL CAUSES OF ACTION**

8. On October 2, 2008, in the early afternoon, Plaintiff left a McDonald's restaurant on Ralph Avenue and Atlantic Avenue, after purchasing a chocolate sundae special.

9. Plaintiff exited McDonald's, walked West on Herkimer Street towards Buffalo Avenue, and on the corner of Herkimer and Buffalo he turned South on Buffalo towards Atlantic Avenue.

10. Plaintiff waited until traffic cleared and went across Atlantic Avenue, walking South. He reached into his pocket to find out how much money he had left from the change he got from McDonald's, and also on his person.

11. When Plaintiff took the money out of his pocket to look at it, two men walking West on Pacific Street looked at him and when Plaintiff noticed the men looking at him, he put the money back in his pocket. The men continued walking West on Pacific Street.

12. When Plaintiff got towards Bergen Street, there were moving trucks double parked by the side of cars and there was a dump site with garbage. On Bergen Street, Plaintiff turned and walked East to walk on the side of the garbage dump site because of double parked cars and moving trucks as there was no room to walk on the Street.

13. A black male with a "hoodie" on, holding a gun which he aimed and pointed at Plaintiff, was on the other side of the dump site, shouted "Hei!" while walking fast towards Plaintiff with the gun pointed at Plaintiff and in a reflex reaction, Plaintiff dove straight to the ground onto the garbage dump to avoid being shot.

14. After Plaintiff fell on top of the garbage dump full of debris, he had giggling and laughter from the man with the "hoodie" and the gun that Plaintiff now understand to be Police Officer Rivera.

15. Defendants stood Plaintiff up. Plaintiff had debris on his clothing from falling on top of the garbage dump, including, but not limited to sticky lollipop, cigarette butts, tobacco from

cigars, and an empty plastic zip-lock bag.

16. Plaintiff was handcuffed and searched by the individual defendants and they found nothing illegal in his pockets or his person. An unmarked car pulled up and Plaintiff was placed inside it and later an unmarked van came and Plaintiff was put inside it with other individuals and driven to the Precinct where he was searched again.

17. Plaintiff was processed and while in Court Plaintiff learned that he was officially charged with being in possession of controlled substance - crack cocaine-, and marihuana. Plaintiff maintained throughout that the allegation that he was seen making a hand to hand transaction with someone else was untrue, that defendants were mistaken or not telling the truth.

18. Bail was set for Plaintiff at \$1,500.00 which Plaintiff could not make and he was driven to Rikers Island from where he was brought to Court many times until his matter came for trial and he was acquitted after trial on January 15, 2009.

19. On January 15, 2009, after being incarcerated for three and a half months, Plaintiff was acquitted of all charges after trial in which Defendants testified and he testified.

20. The controlled substance that Defendants brought to trial and which they presented as evidence of Plaintiff's alleged possession, purchase and/or sale of controlled substance was the empty ziplock bag that clung to Plaintiff's clothes as part of the debris that stuck to him when he dove onto the rubbish to avoid being shot.

21. Upon information and belief, the alleged marijuana that Plaintiff possessed (though none was presented to Plaintiff's knowledge at trial and the charge against Plaintiff in Court alleged that the marihuana was in the ziplock bag) ) was also part of the debris that clung to Plaintiff's clothing when he tried to avoid being shot by Defendants.

22. Because the individual defendants saw Plaintiff before he fell into the debris and saw nothing clinging unto him or his clothes and also saw when they stood him up that the items they claimed were controlled substance/s and marihuana that he allegedly possessed were on his clothes as part of much larger debris that clung to him as a result of him trying to avoid being shot by them, no honest police officer and no reasonable person would have alleged that Plaintiff was either in possession of controlled substance/marihuana or charged and prosecuted Plaintiff for possession of controlled substance and/or marihuana, among other crimes.

**AS FOR A FIRST CAUSE OF ACTION**

23. Plaintiff repeats and realleges paragraphs 1 through 20 as if each paragraph is repeated verbatim herein.

24. Defendants Police Officer James Rivera, Shield #12095, and Police Officer "John Doe" while acting under color of State Law, arrested and imprisoned Plaintiff without probable cause to believe he had committed a crime. Therefore, the individual Defendants violated Plaintiff's right to be free from unreasonable seizures, secured to him under the Fourth and Fourteenth Amendments to the Constitution, and Plaintiff's right not to be denied his liberty without due process of law, secured to him under the Fifth and Fourteenth Amendments to the Constitution. By violating Plaintiff's constitutional rights under color of State Law, the individual Defendants violated 42 U.S.C. § 1983.

25. As a result of the individual Defendants' unlawful seizure of Plaintiff's person, Plaintiff: was denied his freedom and liberty for three and a half months and suffered severe emotional, mental, and physical distress. Plaintiff claims: general and compensatory damages in

an amount that would adequately compensate him for the violation of his rights and for emotional, mental, and physical distress;

26. In addition, because the individual Defendants acted with malice and intentional disregard for Plaintiff Sheldon Lewis' constitutional rights when they arrested him without probable cause, Plaintiff seeks punitive damages in an amount sufficient to punish the individual Defendants and deter others like them from repeating such unlawful conduct.

27. Plaintiff also seeks attorneys' fees and the costs and disbursements of this action.

**AS FOR A SECOND CAUSE OF ACTION**

28. Plaintiff repeats and realleges paragraphs 1 through 27 as if each paragraph is repeated verbatim herein.

29. In violation of 42 U.S.C. § 1983, Defendants James Rivera, Shield #12095, and Police Officer "John Doe", while acting under color of State law, charged Plaintiff with crimes, including possession of controlled substance, marijuana, among other crimes, when they knew that Plaintiff did not commit those crimes, were reckless in charging Plaintiff with those crimes and had knew or ought to have known that they could not successfully prosecute Plaintiff for those crimes.

10. As a result of the individual Defendants' charging and prosecution of Plaintiff, Plaintiff: was denied his freedom and liberty for approximately three and a half months, lost income, and suffered severe emotional and mental distress. Plaintiff claims: general and compensatory damages in an amount that would adequately compensate him for the violation of his rights and for his emotional, mental, and physical distress; and specific damages in the

amount of income that he lost during his incarceration,

31. In addition, because the individual Defendants acted with malice and intentional disregard for Plaintiff's constitutional rights when they charged him with crimes and prosecuted him on those charges, Plaintiff seeks punitive damages in an amount sufficient to punish the individual Defendants and deter others like them from repeating such unlawful conduct.

32. Plaintiff also seeks attorneys' fees and the costs and disbursements of this action.

**AS FOR A THIRD CAUSE OF ACTION**

33. Plaintiff repeats and realleges paragraphs 1 through 32 as if each paragraph is repeated verbatim herein.

34. In violation of Plaintiff's common law right not to be maliciously prosecuted, Defendants James Rivera, Shield #12095, and Police Officer "John Doe", while acting under color of State law, charged Plaintiff with crimes, including possession of controlled substance, possession of marijuana, among other crimes, when they knew that Plaintiff did not commit those crimes, were reckless in charging Plaintiff with those crimes and knew or ought to have known that they could not successfully prosecute Plaintiff for those crimes.

35. As a result of the individual Defendants' charging and prosecution of Plaintiff, Plaintiff: was denied his freedom and liberty for approximately three and a half months, lost income, and suffered severe emotional and mental distress. Plaintiff claims: general and compensatory damages in an amount that would adequately compensate him for the violation of his rights and for his emotional, mental, and physical distress; and specific damages in the amount of income that he lost during his incarceration,

36. In addition, because the individual Defendants acted with malice and intentional disregard for Plaintiff's constitutional rights when they charged him with crimes and prosecuted him on those charges, Plaintiff seeks punitive damages in an amount sufficient to punish the individual Defendants and deter others like them from repeating such unlawful conduct.

37. Plaintiff also seeks the costs and disbursements of this action.

**AS FOR THE FOURTH CAUSE OF ACTION**

38. Plaintiff repeats and realleges paragraphs 1 through 37 as if each paragraph is repeated verbatim herein.

39. The violations of Plaintiff's constitutional rights by the individual Defendants and were carried out under the following policies, customs, and practices of Defendant City of New York:

- I. City to failed to properly train, supervise, discipline and hold accountable its police officers and its affirmative instruction to police officers to stop citizens when they have not committed any crimes which has encouraged and fostered unconstitutional behavior among New York City Police Officers and Plaintiff is therefore entitled to damages against the City for the violation of his constitutional rights.
- II. Failure to establish, publish, and instill in New York City Police Officers and Detectives the practical meaning of probable cause or reasonable cause for arrests so that officers would not detain and/or arrest citizens based on their hunches, inklings, or mere suspicion and without reasonable or probable cause;

- III. Failure to establish, publish, and instill in New York City Police Officers and Detectives the importance of conducting an investigation before arresting a member of the public;
- IV. De-emphasizing the importance of an arrest warrant issued by a Judge or Magistrate, which would act as a buffer between the citizenry and the Police, and encouraging the Police under the aggressive policing policy of the Giuliani and Bloomberg administrations to arrest first and ask questions later; and
- V. Failing to take proper corrective and punitive actions against overreaching police officers and creating the impression that crime reduction is paramount and triumphs over constitutional rights in all circumstances.

40. Under 42 U.S.C. § 1983, Defendant City is jointly and severally liable with the individual Defendants for the general and specific damages Plaintiff sustained in the First, Second, Third, Fourth, Fifth, and Sixth Causes of Action, as well as for the attorneys' fees and the costs and disbursements of the action.

**WHEREFORE**, Plaintiff prays the Court for judgment as follows for each Cause of Action:

- i. general and compensatory damages in an amount that would adequately compensate him for the violation of his rights and for his emotional, mental, and physical distress; -- against all Defendants, jointly and severally;
- iii. punitive damages in an amount sufficient to punish the individual Defendants and deter others like them from repeating such unlawful conduct -- against the individual Defendants,

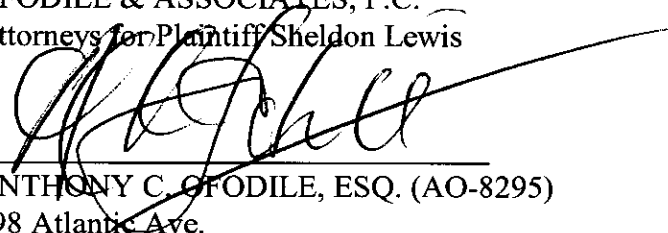
jointly and severally;

iv. attorneys' fees and the costs and disbursements of this action -- against all Defendants, jointly and severally; and

v. such other relief as the court deems just and proper.

Dated: Brooklyn, New York  
January 15, 2010

OFODILE & ASSOCIATES, P.C.  
Attorneys for Plaintiff Sheldon Lewis

By: 

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